

JORDAN 2020 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Hashemite Kingdom of Jordan is a constitutional monarchy ruled by King Abdullah II bin Hussein. The constitution grants the king ultimate executive and legislative authority. The multiparty parliament consists of a 130-member popularly elected House of Representatives (Majlis al-Nuwwab) and a Senate (Majlis al-Ayan) appointed by the king. Elections for the House of Representatives occur approximately every four years and last took place on November 10. Local nongovernmental organizations reported some COVID-19-related disruptions during the election process but stated voting was generally free and fair.

Jordan's security services underwent a significant reorganization in December 2019 when the king combined the previously separate Public Security Directorate (police), the Gendarmerie, and the Civil Defense Directorate into one organization named the Public Security Directorate. The reorganized Public Security Directorate has responsibility for law enforcement and reports to the Ministry of Interior. The Public Security Directorate and the General Intelligence Directorate share responsibility for maintaining internal security. The General Intelligence Directorate reports directly to the king. The armed forces report to the Minister of Defense and are responsible for external security, although they also have a support role for internal security. Civilian authorities maintained effective control over the security forces. Members of the security forces committed some abuses.

Significant human rights issues included: cases of cruel, inhuman, and degrading treatment or punishment; arbitrary arrest and detention, including of activists and journalists; infringements on citizens' privacy rights; serious restrictions on free expression and the press, including criminalization of libel, censorship, and internet site blocking; substantial restrictions on freedom of association and freedom of peaceful assembly; serious incidents of official corruption; "honor" killings of women; trafficking in persons; and violence against lesbian, gay, bisexual, transgender, and intersex persons.

JORDAN

Impunity remained widespread, although the government took some limited steps to investigate, prosecute, and punish officials who committed abuses. Information on the outcomes of these actions was not publicly available for all cases.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were no reports of arbitrary or unlawful deprivation of life by security forces during the year. There were developments regarding custodial death cases from previous years.

In April 2019 officers from the Criminal Investigations Division of the Public Security Directorate (PSD) were charged with the negligent homicide of Omar al-Nasir (killed in 2015) and convicted by the police court of the harsher charge of “beating resulting in death.” Both the officers and the victim’s family appealed the verdict. In February the Court of Cassation upheld the police court’s verdict that officers had committed the crime of “beating resulting in death” and sentenced the accused to seven years temporary hard labor. Local nongovernmental organizations (NGOs) and rights activists welcomed the verdict and considered it a legal precedent.

Several nongovernmental organizations (NGOs) reported on the 2018 death of Bilal Emoush while in custody. Emoush was arrested in May 2018 by the PSD’s Anti-Narcotics Division and was reportedly beaten and tortured while in custody in order to extract a confession, according to multiple NGOs. He was transferred to the hospital in June 2018, where he died from his injuries. According to one local NGO, no official investigation of police mistreatment was conducted, the police officers involved in the incident were not prosecuted, and the case was dismissed for insufficient evidence. Another NGO reported that multiple health-care workers involved in the case were under investigation for negligence. The PSD reported that three individuals were referred to the Zarqa felony magistrate court at the end of 2019. The case remains pending.

JORDAN

Police officers are tried in police courts when facing either criminal penalties or administrative punishment. The quasi-governmental watchdog National Center for Human Rights demanded that police officers accused of gross violations of human rights be tried in independent civil courts instead of police courts, which fall under the Ministry of Interior and are considered less independent, according to many NGOs.

b. Disappearance

There were no reports of disappearances by or on behalf of government authorities during the year.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution bans torture, including psychological harm, by public officials and provides penalties up to three years' imprisonment for its use, with a penalty of up to 15 years if serious injury occurs. While the law prohibits such practices, international and local NGOs reported incidents of torture and mistreatment in police and security detention centers. Human rights lawyers found the penal code ambiguous and supported amendments to define "torture" more clearly and strengthen sentencing guidelines. According to government officials, all reported allegations of abuse in custody were thoroughly investigated, but human rights NGOs questioned the impartiality of these investigations.

In contrast to 2019, local and international NGOs did not report that Anti-Narcotics Division personnel routinely subjected detainees to severe physical abuse but NGOs reported some instances of abuse. Allegations of abuses were made against the Criminal Investigations Division, which led to criminal charges. While there was no documentation of complaints of mistreatment by the General Intelligence Directorate (GID) during the year, local NGOs said abuse still occurred but citizens did not report abuse due to fear of reprisals.

From September 2019 to September 2020, the PSD Human Rights and Transparency Office received 43 complaints with allegations of harm (a lesser

JORDAN

charge than torture that does not require a demonstration of intent) against officers. Most alleged abuse occurred in pretrial detention.

Prison and Detention Center Conditions

Conditions in the country's 18 prisons varied: Old facilities had poor conditions while new prisons met international standards. Authorities held foreigners without legal work or residency permits in the same facilities as citizens. (For information on asylum seekers and refugees, see section 2.f.)

Physical Conditions: International NGOs and legal aid organizations identified problems including overcrowding, limited health care, inadequate legal assistance for inmates, and limited social care for inmates and their families. The PSD opened Qafqafa Prison, with a capacity of 1,050 inmates, to receive detainees from overcrowded prison facilities.

The PSD took steps to monitor detention facilities and to promote compliance with detention policies, and by the end of 2019 were using electronic records to log every case and detainee. According to the PSD's Human Rights and Transparency Office, the PSD received 39 cases of allegations of torture and mistreatment in prisons and rehabilitation centers between October 2019 and September 2020.

Officials reported overcrowding at some prisons, especially the prisons in and around Amman. According to the PSD, 12,986 inmates in detention were released between March and September in order to ease overcrowding and mitigate the chance of COVID-19 spreading in prisons.

International and domestic NGOs reported that Islamist prisoners faced harsher prison conditions than other inmates.

According to the PSD, authorities designated some facilities to hold only pretrial detainees. The GID held some persons detained on national security charges in a separate detention facility. During the year the National Center for Human Rights (NCHR) made one announced visit to the GID facility. The GID allowed the NCHR to conduct unsupervised meetings with prisoners. Detainees complained of solitary confinement, isolation, and prolonged pretrial detentions of up to six months. According to human rights activists, the GID held detainees in solitary

JORDAN

confinement. Local and international NGOs received reports of mistreatment, abuse, and torture in GID detention facilities.

Although basic medical care was available in all correctional facilities, medical staff complained that correctional facilities throughout the country lacked adequate medical facilities, supplies, and staff. Most facilities were unable to conduct blood tests and had limited X-ray capabilities, forcing doctors to rely largely on self-reporting by patients for certain conditions. If an inmate's condition was too severe for treatment at the prison's clinic, doctors recommended transfer to a local hospital.

Conditions in the women's prisons were generally better than conditions in most of the men's prisons.

Police stations had no separate holding areas for juveniles. Authorities held juveniles in special facilities supervised by the Ministry of Social Development.

Administration: Prosecutors exercised oversight regarding the condition of detainees. From October 2019 to September 2020, the PSD Human Rights and Transparency Office made a total of 519 visits to detention centers accompanied by observers from both local and international organizations. Karamah (a team of government officials and NGOs) and the NCHR also monitored prison conditions. In some cases, both prior to and during the COVID-19 pandemic, authorities severely restricted the access of detainees to visitors.

In March prison riots broke out in the Bab al-Hawa Correctional Center in the Irbid and Rmeimeen Correctional Center in Jerash following the government's announcement it would suspend court appearances (effectively extending some individuals' detentions) and suspend familial prison visits as part of the government's COVID-19 mitigation response. Two prisoners died after falling and being trampled during the Bab al-Hawa riot.

Authorities sometimes did not inform families regarding the whereabouts of detainees or delayed notification of families between 24 hours and 10 days. The PSD has implemented a new system of electronic record keeping to address this problem.

JORDAN

Independent Monitoring: The government permitted some local and international human rights observers and lawyers to visit prisons and conduct private interviews. The International Committee of the Red Cross had wide access to visit prisoners and detainees in all prisons, including facilities operated by the GID. Authorities approved some requests by local human rights observers to conduct monitoring visits independently of Karamah and the NCHR.

Improvements: The PSD renovated six prison facilities to improve sanitary facilities, sanitation, ventilation, and temperature control, and to increase access to drinking water, sunlight, and medical care. The Beireen and Aqaba prison facilities improved general maintenance and repairs and increased the number of beds. An outdoor garden for family visits was added to the Juweideh detention center. The PSD also allowed detainees at seven prison facilities to participate in court hearings by video conference. Authorities took steps to use alternatives to prison sentences for nonviolent offenders. From 2018 through August, the Ministry of Justice processed 326 criminals into alternative sentencing.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his or her arrest or detention in court; however, the government did not always observe these prohibitions.

Security services detained political activists for shouting slogans critical of authorities during protests. Some activists were arbitrarily arrested and held without charge, others were charged with insulting the king, undermining the political regime, or slander. Most detentions lasted for days, but some lasted several months. At least five detainees held a hunger strike from February through March to protest their arrest and arbitrary detention. As of October more than 20 individuals remained in detention for reasons connected to freedom of expression, according to media reports and local NGOs.

Arrest Procedures and Treatment of Detainees

The law provides a person in custody with the right to appear promptly before a judge or other judicial officer for a judicial determination of the legality of the

JORDAN

detention. The law allows authorities to detain suspects for up to 24 hours without a warrant in all cases. It requires that police notify authorities within 24 hours of an arrest and that authorities file formal charges within 15 days of an arrest. Authorities can extend the period to file formal charges to as long as six months for a felony and two months for a misdemeanor. According to local NGOs, prosecutors routinely requested extensions, which judges granted. The State Security Court (SSC) can authorize Judicial Police (part of the PSD) to arrest and keep persons in custody for seven days prior to notification of arrest while conducting criminal investigations. This authority includes arrests for alleged misdemeanors. NGOs alleged that authorities transferred suspects to the SSC to extend the legal time from 24 hours to seven days for investigation prior to notification. NGOs also alleged that authorities transferred suspects from one police station to another to extend the period for investigation. During the year the Ministry of Justice operated an electronic notification system for judicial action to help lawyers remain up-to-date on their cases and reduce the pretrial detention period.

The penal code allows bail, and authorities used it in some cases. In many cases the accused remained in detention without bail during legal proceedings. PSD regulations exempt persons from pretrial detention if they have no existing criminal record and the crime is not a felony. NGOs reported cases of arbitrary administrative detention during the year. In January the Jordanian Bar Association civil liberties committee condemned the Zarqa governor for re-arresting and administratively detaining four Bani Hassan tribe *hirak* (movement) activists. According to the association, the governor justified arresting the four activists a second time because they allegedly insulted a police officer and blocked public roads.

Many detainees reported not having timely access to a lawyer. Courts appointed lawyers to represent indigent defendants charged with felonies carrying possible life sentences (often interpreted by the judiciary as 20 years) or the death penalty, although for lesser crimes legal aid services remained minimal.

At times authorities held suspects incommunicado for up to one week or placed them under house arrest. Several human rights activists alleged that authorities

JORDAN

held arrestees incommunicado to hide evidence of physical abuse by security forces. Courts did not always offer adequate translation services for defendants who could not speak Arabic.

In 2019 Amnesty International reported that virginity testing was commonly requested by male guardians after female relatives had been detained by authorities for being “absent” from the male guardian’s home. Authorities generally complied with those requests despite international consensus that these tests violate women’s rights and are a form of cruel, inhuman, and degrading treatment.

Arbitrary Arrest: In cases purportedly involving state security, security forces at times arrested and detained individuals without informing them of the charges against them and either did not allow defendants to meet with their lawyers or did not permit meetings until shortly before trial.

The law allows the 12 provincial governors to detain individuals administratively as they deem necessary for investigation purposes or to protect that individual. Authorities held some individuals in prison or under house arrest without due process and often despite a finding of not guilty in legal proceedings. According to the Ministry of Interior, from January through August, approximately 10,000 persons were held under administrative detention, including 6,152 individuals in Amman, 2,209 in Irbid, 698 in Zarqa, 516 in Balqa, 29 in Karak, 35 in Ma’an, 35 in Mafraq, 25 in Tafleeh, 48 in Jerash, 41 in Aqaba, 39 in Madaba, and 23 in Ajloun. Several international and national NGOs, along with the NCHR, alleged governors routinely abused the law, imprisoning individuals when there was not enough evidence to convict them, and prolonging the detention of prisoners whose sentences had been completed.

Governors continued to issue thousands of administrative detention orders under a 1954 law that allows pretrial detention from three days to one year without charge or trial or any means of legal remedy. The Ministry of Interior released a total of 1,366 individuals placed under administrative detention by governors between October 2019 and July 2020 to reduce overcrowding in detention centers.

According to local and international NGOs, authorities routinely engaged in “protective” detention of women (a type of informal detention without trial) to deal

JORDAN

with cases ranging from sex outside of marriage to absence from home to being the victim of sexual violence, all of which could put women at risk of so-called honor crimes. Since 2018 women at risk of gender-based violence and “honor” crimes are referred to Ministry of Social Development shelters. While previously authorities held these women in the same administrative detention facilities as criminals, the PSD began transferring some of them directly to the shelter.

According to Ministry of Social Development, since October 2019 approximately 68 women had been transferred to its shelter for varying periods of time. NGOs reported that some women were administratively detained at Juweideh Prison for “absence” from home without permission of a male guardian or for having sex outside of marriage. Juweideh Correctional Center held 412 women, including 102 administrative detainees, as of February (see section 6). Some detained women told a local NGO that self-defense from domestic violence and economic exploitation led to their detention. Most detained women were kept in prison due to a determination by authorities that a family member must provide a guarantee to protect them from attack prior to their release.

During the year local NGOs said that officials detained some foreign laborers; those whose employers did not administratively secure their release were held for working without authorization, being absent from their authorized workplace, or lacking proper residency permits. According to the PSD, a committee was formed to assess the detention of foreign workers. Most foreign workers were exempted from paying fines for overstaying their visas and subsequently were repatriated if they chose to return to their home country.

Pretrial Detention: The law criminalizes detaining any person for more than 24 hours without a prosecutor’s authorization. Rights activists said authorities routinely ignored this limit and, according to human rights organizations, impunity was very common for violations. In 2019, 39 percent of all those in detention were pretrial detainees, according to the University of London’s World Prison Brief, an 11 percent decrease from 2018.

The GID continued to subject individuals to prolonged pretrial detention (in some cases without charges), solitary confinement, and mistreatment, according to the NCHR and other organizations.

JORDAN

Detainee's Ability to Challenge Lawfulness of Detention before a Court: The law does not have an explicit provision that entitles victims of arbitrary or unlawful detention to restitution. The law does not provide for routine judicial review of administrative detentions ordered by governors. Detainees can bring civil lawsuits for restitution for arbitrary or unlawful detention or bring criminal lawsuits for illegal incarceration; however, the legal community reported such lawsuits seldom occurred. Detainees must hire a lawyer with at least five years' experience, must pay their own fees, and must present a copy of the order of detention. There were no cases of restitution during the year.

During the year the Ministry of Justice allocated money to provide electronic monitoring bracelets as an alternative to detention.

e. Denial of Fair Public Trial

The law provides for an independent judiciary. Since 2018, the judicial training institute has been housed at the Judicial Council and judges enjoy lifetime tenure, which strengthens judicial independence, according to local NGOs.

Trial Procedures

The law provides for the right to a fair and public trial, and the judiciary generally sought to enforce this right. The law presumes that defendants are innocent. Officials sometimes did not respect the right of defendants to be informed promptly and in detail of the charges against them or to a fair and public trial without undue delay. According to the law, all civilian court trials and SSC trials are open to the public unless the court determines that the trial should be closed to protect the public interest.

Authorities occasionally tried defendants in their absence. The country allows defendants to be tried in their absence, but it requires a retrial upon their return. The SSC has more restrictions than the other courts on conducting trials when the defendant is not present.

Defendants are entitled to legal counsel, provided at public expense for the indigent in cases involving the death penalty or life imprisonment, but only at the

JORDAN

trial stage. Most criminal defendants lacked legal representation prior to and at trial. Frequently defendants before the SSC met with their attorneys only one or two days before their trial began.

In 2019 the PSD and the Jordanian Bar Association signed a Memorandum of Understanding allowing lawyers access to all detention centers and prison facilities, and to meet with their clients privately in dedicated rooms. Authorities did not uniformly provide foreign residents, especially foreign workers who often did not speak Arabic, with free translation and defense. The Ministry of Justice, in collaboration with the Jordanian Bar Association and another human rights NGO, maintained a designated unit to provide legal aid services to witnesses and defendants, as mandated by law. Through August, 353 individuals received legal aid through this program.

Defendants may present witnesses and evidence and may cross-examine witnesses presented against them. Defendants do not have the right to refuse to testify. Although the constitution prohibits the use of confessions extracted by torture, human rights activists noted that courts routinely accepted confessions allegedly extracted under torture or mistreatment.

Defendants can appeal verdicts; appeals are automatic for cases involving the death penalty or a sentence of more than 10 years' imprisonment. When defendants at trial recant confessions obtained during the criminal investigation, those confessions are not used against the defendant; the trial then relies solely on the evidence collected and presented at trial.

In the SSC, defendants have the right to appeal their sentences to the Court of Cassation, which has the authority to review issues of both fact and law.

The government allowed international observers to visit the SSC and the military and police courts to observe court proceedings throughout the year. For example, in 2019 foreign diplomats observed police court proceedings in many cases, including those involving drug use, unlawful intimidation in a landlord-tenant dispute, domestic violence, and theft from migrant workers during police stops. In January foreign diplomats observed a corruption trial at the SSC.

JORDAN

Civil, criminal, and commercial courts accord equal weight to the testimony of men and women. In sharia courts, which have civil jurisdiction over Muslim marriage, divorce, and inheritance cases, the testimony of one man equals that of two women, with exceptions in certain cases. As a response to local and international human rights recommendations, the Sharia Judicial Institute conducted over 35 training sessions for all its judges and prosecutors as part of the Institute's newly introduced human rights curriculum.

The law places the age of criminal responsibility at 12 years. The law stipulates that juveniles charged with committing a crime along with an adult be tried in a juvenile court. Juveniles tried at the SSC were held in juvenile detention centers. The law stipulates alternative penalties for juvenile offenders, including vocational training and community service. According to the Ministry of Social Development, a behavior control office at the SSC was established to follow up on cases of juveniles indicted for drug use and trafficking.

Political Prisoners and Detainees

There were numerous instances of the government detaining and imprisoning activists for political reasons, including criticizing the government, criticizing the government's foreign policy, publishing criticism of government officials and official bodies, criticizing foreign countries, and chanting slogans against the king. Citizens and NGOs alleged the government used administrative detention for what appeared to be political reasons.

In September the Amman Magistrate's Court charged the Islamic Action Front's election campaign director, Badi-al-Rafai'aa, with "impudent/offensive speech against a sisterly country" based on alleged Facebook postings critical of Egyptian President Abdel Fattah el-Sisi, as well as retweets of four other posts. Rafai'aa was denied bail, leaving him detained until trial. Family members claimed Rafai'aa was innocent and had been charged due to his political work. As of the end of the year, the case remained pending.

In August prominent Jordanian cartoonist Emad Hajjaj was detained for publishing in a United Kingdom periodical a caricature critical of UAE Crown Prince Mohammed bin Zayed and the Abraham Accords Peace Agreement. Hajjaj was

JORDAN

referred to the SSC and charged with disturbing relations with a foreign country, an offense under the Anti-Terrorism Law. Hajjaj was released from custody shortly after his arrest. Prior to his release, the state security prosecutors changed the charges to defamation and slander under the Cybercrimes Law, and referred the case to the civilian courts. At the end of the year, the case remained pending.

Civil Judicial Procedures and Remedies

Individuals may bring civil lawsuits related to human rights violations through domestic courts.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The constitution protects the right to privacy, but allows for surveillance “by a judicial order in accordance with the provisions of the law.” The Anti-Terrorism Law permits the prosecutor general to order surveillance upon receiving “reliable information” that “a person or group of persons is connected to any terrorist activity.”

The law prohibits such actions, but individuals widely believed that security officers monitored telephone conversations and internet communication, read private correspondence, and engaged in surveillance including monitoring online comments by cataloging them by date, internet protocol (IP) address, and location, without court orders.

The NetBlocks internet observatory reported that Facebook Live video streaming features were restricted on multiple internet providers several times in late July and early August coinciding with demonstrations related to the Jordanian Teachers Syndicate.

Some tribes continued to employ the custom of *jalwa*, where the relatives of a person accused of homicide are displaced to a different geographic area pending resolution between the involved families to prevent further bloodshed and revenge killings. Even though *jalwa* and tribal law were abolished from the legal system in

JORDAN

1976, security officials sporadically continued to facilitate banishment and other tribal dispute resolution customs.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Expression, Including for the Press

The constitution provides, “The State shall guarantee freedom of opinion; and every Jordanian shall freely express his opinion by speech, writing, photography, and the other means of expression, provided that he does not go beyond the limits of the law.” Authorities applied regulations to limit freedom of speech and press in practice. Authorities applied articles of the Anti-Terrorism Law, Cybercrimes Law, Press and Publications Law, and penal code to arrest local journalists.

Freedom of Speech: The law permits punishment of up to three years’ imprisonment for insulting the king, slandering the government or foreign leaders, offending religious beliefs, or fomenting sectarian strife and sedition. The government restricted the ability of individuals to criticize the government by arresting a number of activists for political expression. Authorities used laws against slander of public officials, blackmail, and libel to restrict public discussion, as well as employed official gag orders issued by the public prosecutor.

In April authorities arrested three activists associated with opposition organizations: Oday Abu Rumman, Ahmad Nuwaifi Khawaldeh, and Hisham Saraheen. Saraheen was released the same day as his arrest. Abu Rumman was released in early May. Khawaldeh was charged with slandering the royal family and for offenses under the Cybercrimes Law.

Freedom of Press and Media, Including Online Media: All publications must obtain licenses from the government to operate. There were many daily newspapers. Observers considered several as independent of the government, including one regarded as close to the Islamic Action Front (the Jordanian Muslim Brotherhood’s legally registered political party). Observers also judged several daily newspapers to be close to the government.

JORDAN

The independent print and broadcast media largely operated with limited restrictions. Media observers reported government pressure, including the threat of large fines and prison sentences, on media to refrain from criticizing the royal family, discussing the GID, covering ongoing security operations, using language deemed offensive to Islam, or slandering government officials. The government influenced news reporting and commentary through political pressure on editors and control over important editorial positions in government-affiliated media. Journalists of government-affiliated and independent media reported that security officials used bribes, threats, and political pressure to force editors to place articles favorable to the government in online and print newspapers.

In August, Human Rights Watch reported certain local and foreign journalists operating in the country said that over the past few years, they experienced increased restrictions on their reporting in the form of gag orders, harassment by security forces, and withholding of permits to report. In July prosecutors questioned JO24 news website editor Basil Okour after his outlet was accused of publishing articles related to the government's standoff with the Jordanian Teachers Syndicate in defiance of a prosecutor's gag order.

The law grants authority to the head of the Media Commission to close any unlicensed theater, satellite channel, or radio channel. In 2019, the Media Commission granted broadcasting licenses to companies owned by citizens and foreigners. Those with licenses may not legally broadcast anything that would harm public order, social security, national security, or the country's relations with a foreign country; incite hatred, terrorism, or violent sedition; or mislead or deceive the public. The cabinet must justify the reasons for rejecting a license and allow the applicant to appeal the decision to the judiciary. There is a fine for broadcasting without a license.

The government has a majority of seats on the board for the leading semiofficial daily newspaper *al-Rai* and a share of board seats for the *ad-Dustour* daily newspaper. According to press freedom advocates, the GID's Media Department must approve editors in chief of progovernment newspapers.

JORDAN

Media observers noted that when covering controversial subjects, the government-owned Jordan Television, Jordan News Agency, and Radio Jordan reported only the government's position.

The Media Commission ordered the suspension of Amman-based Iraqi Dijlah TV Satellite channel twice for violating licensing provisions of the Jordanian Audio-Visual Law in January and May by illegally broadcasting from Jordan without a permit. The station was suspended in 2019 for covering the protests in Iraq, according to media sources. The station continued during the suspension to operate online via Facebook, YouTube, and Instagram.

By law, any book can be published and distributed freely. Nonetheless, if the Media Commission deems that passages violate public norms and values, are religiously offensive, or are “insulting” to the king, it can request a court order to prohibit the distribution of the book. The Media Commission banned the distribution of selected books for religious and moral reasons.

The Media Commission licenses all public-opinion polls and survey research centers in accordance with the Press and Publications Law.

Violence and Harassment: The government subjected journalists to harassment and intimidation.

In its report *Under the Curfew ... The Status of Media Freedom in the Shadow of the Corona Pandemic*, the Center for Defending the Freedom of Journalists (CDFJ), a local NGO, documented 17 specific cases of violations of freedoms against journalists and media organizations between March and June. The CDFJ reported a decline in media freedom this year, attributed primarily to the application of the Defense Law and associated Defense Orders. The CDFJ attributes the decline in specific cases of violations to the government's denial of access to journalists covering updates and news, as well as self-censorship.

Authorities arrested or temporarily detained some journalists, and government officials or private individuals threatened some journalists.

Police beat two journalists who covered the Teachers Syndicate protests, in violation of the gag order, according to HRW.

JORDAN

In April, *Roya TV*'s General Manager Fares Sayegh and News Director Mohammad Alkhalidi were arrested following a news report on *Roya News*' website and social media pages highlighting workers' complaints about the economic impact of the COVID-19 curfew. Prosecutors charged Sayegh and Alkhalidi under the Anti-Terrorism Law. Both were released on bail three days later, and at the end of the year the case remained pending.

Censorship or Content Restrictions: The government directly and indirectly censored the media and online activists, reducing the variety of information available on the internet. The government's efforts to influence journalists, including withholding financial support, scholarships for relatives, and special invitations, led to significant control of media content.

The CDFJ report and journalists noted widespread self-censorship among journalists. Fearing arrest and prosecution, journalists avoided reporting on certain issues, including political opposition based abroad and the lesbian, gay, bisexual, transgender, and intersex (LGBTI) community.

Editors reportedly received telephone calls from security officials instructing them how to cover events or to refrain from covering certain topics or events, especially criticism of political reform. At times, editors in chief censored articles to prevent lawsuits. According to media reports, at least two journalists were denied publication of their articles. Bribery of journalists took place and undermined independent reporting. In an opinion poll conducted by the CDFJ, 44 percent of journalists said the government limited information to certain sources, and 41 percent said movement restrictions limited their ability to conduct investigative reporting. Journalists cited the weak financial condition of media outlets, the threat of detention and imprisonment for defamation for a variety of offenses, and court-ordered fines of as much as 150,000 Jordanian dinars (JD) (\$210,000) as factors influencing media content.

During the year the Media Commission circulated official gag orders restricting discussion in all media, including social media. One gag order involved the closure of the Teachers Syndicate and detention of its leadership, and a second gag order involved the killing of a woman in a domestic violence case. For grand felony cases or cases of domestic violence, the public prosecutor may issue a gag

JORDAN

order to protect the victims or witnesses involved. The Media Commission also bans publication of any reports about the armed forces outside of statements made by the armed forces' spokesperson.

Libel/Slander Laws: The Cybercrimes Law allows public prosecutors to detain individuals suspected of violating libel and slander laws. Internet users face at least three months in jail and a maximum fine of 2,000 dinars (\$2,800) if they are found guilty of defamation on social or online media. Government prosecutors relied on privately initiated libel, slander, and defamation lawsuits to suppress criticism of public figures and policies. Dozens of journalists, as well as members of parliament, faced libel and slander accusations filed by private citizens. Amendments to the law place the burden of proof for defamation on the complainant. The law forbids any insult of the royal family, state institutions, national symbols, or foreign states, as well as “any writing or speech that aims at or results in causing sectarian or racial strife.” Defamation is also a criminal offense.

In March journalist Hiba Abu Taha was detained for criticizing the prime minister on Facebook. She was charged with “prolonging the tongue” (insulting), opposing the political system, and broadcasting false news. Abu Taha was released on bail, but at the end of the year the case remained pending. In May police officers arrested Yarmouk University political science professor Mohammed Turki Bani Salamah on charges of slander, after he alleged three prime ministry staffers corruptly obtained their appointments. Bani Salamah was released a couple of weeks after the three staffers dropped the charges.

National Security: The government used laws protecting national security to restrict criticism of government policies and officials.

Internet Freedom

The government restricted or disrupted access to the internet and censored online content. There were credible reports that the government monitored private online communications without appropriate legal authority. The law requires the licensing and registration of online news websites, holds editors responsible for readers' comments on their websites, requires that website owners provide the government with the personal data of its users, and mandates that editors in chief

JORDAN

be members of the Jordan Press Association. The law gives authorities explicit power to block and censor websites. The Press and Publications Law allows the media commissioner to ban websites without a court order.

The Telecommunications Law requires that telecommunications providers take appropriate measures to enable the tracking of user communications upon a judicial or administrative order.

The government continues to order internet service providers (ISPs) to block access to messaging apps on days that secondary school students sit for their national exam (Tawjihi) in order to prevent cheating. Voice over Internet Protocol (VoIP) services are restricted by some ISPs, such as WhatsApp and Viber, while Facebook Messenger, Telegram, and Skype remain accessible.

In February detained activists Bashar al-Rawashdeh and Malek al-Mashagbeh launched hunger strikes while in detention. Rawashdeh was charged with incitement under the Cybercrimes Law for criticizing the U.S. “Vision for Peace” Middle East peace plan on Facebook. He began a hunger strike immediately after his arrest. Mashagbeh was sentenced to one year’s imprisonment for “lese-majeste” (the crime of insulting the monarch or monarchy), and launched a hunger strike soon after. Another three activists were released earlier in the year following deterioration of their health as a result of hunger strikes.

Authorities continued to block the website of an online lifestyle magazine with an LGBTI target audience on the grounds that it was an unlicensed publication.

According to the Media Commission, there is no registration fee for a website. News websites must employ editors in chief with at least four years’ membership in the Jordan Press Association. The owner and editor in chief can be fined, in addition to criminal penalties, for website content that “includes humiliation, defamation, or disparagement of individuals in a manner that violates their personal freedoms or spreads false rumors about them.”

According to journalists, security forces demanded that websites remove some posted articles. The government threatened websites and journalists that criticized the government, while it actively supported those that reported favorably on the

JORDAN

government. The government monitored electronic correspondence and internet chat sites. Many individuals believed they were unable to express their views fully or freely via the internet, including by personal email.

During the year, according to local and international NGOs, security forces blocked live-streamed videos of protests posted on Facebook.

Academic Freedom and Cultural Events

The government placed some limits on academic freedom. Some members of the academic community claimed there was a continuing government intelligence agency presence in academic institutions, including monitoring academic conferences and lectures. The government monitored political meetings, speech on university campuses, and sermons in mosques and churches. Academics reported the GID must clear all university professors before their appointment. Academics also reported university administrators must approve all research papers, forums, reading materials, movies, or seminars. Administrators clear potentially controversial material through the GID. Authorities edited commercial foreign films for objectionable content before screening in commercial theaters.

b. Freedoms of Peaceful Assembly and Association

The government limited freedoms of peaceful assembly and association.

Freedom of Peaceful Assembly

The constitution provides for freedom of assembly but the government sometimes limited this right. Security forces provided security at demonstrations granted permits by government or local authorities.

The law requires a 48-hour notification to the local governor for any meeting or event hosted by any local or international group. While not required by law, several local and international NGOs reported that hotels, allegedly at the request of security officials, required them to present letters of approval from the governor prior to holding training courses, private meetings, or public conferences. There were some reported cases of the governor denying approval requests without explanation, according to local and international human rights NGOs. Without

JORDAN

letters of approval from the government, hotels cancelled the events. In some cases, NGOs relocated the events to private offices or residences, and the activities were held without interruption.

Protests regarding economic policies, corruption, and government ineffectiveness occurred across the country throughout the year. The weekly protests by activists that began in 2018 have not been held since March, following the imposition of public health-related government restrictions on gatherings of more than 20 persons to mitigate the spread of COVID-19.

On July 25, hundreds of teachers protested in cities across the country after the government suspended the Jordanian Teachers Syndicate (the syndicate). Crowds were not as large as in the previous year, but large protests occurred across the country including in Karak, Tafileh, Jerash, and Madaba. Demonstrations were generally peaceful, with a significant presence of Jordanian security forces. The deputy head of the syndicate, Nasser al-Nawasreh, was cited in a HRW report describing his arrest on the Irbid-Amman highway, when he was surrounded by three unmarked vehicles, and a hood was placed over his head. On July 29 in Amman, hundreds of teachers and supporters held another protest against the July suspension order. Security services prevented protestors from reaching their intended destination and videos showed police using batons to beat back demonstrators who attempted to push through cordons. Authorities arrested over 600 persons during the protests; all were released within 24 hours.

On July 22, hundreds of demonstrators held a sit-in in front of parliament to protest violence against women and so-called honor killings in the wake of the “Ahlam” case (see section 6). Despite regulations mandating masks, social distancing, and groups of fewer than 20 persons, protesters were allowed to gather without interference from security services.

Security services and protesters generally refrained from violence during demonstrations. Occasional scuffles occurred when protesters attempted to break through security cordons intended to limit demonstrations to particular locations. In such situations police occasionally used tear gas.

JORDAN

Security services detained political activists for shouting slogans critical of authorities during protests. Some activists were arbitrarily arrested and held without charge, others were charged with insulting the king, undermining the political regime, or slander.

Freedom of Association

The constitution provides for the right of association but the government limited this freedom. The law authorizes the Ministry of Social Development and Ministry of Trade, Industry, and Supply to approve or reject applications to register organizations and to prohibit organizations from receiving foreign funding for any reason. It prohibits the use of associations for the benefit of any political organization. The law also gives these ministries significant control over the internal management of associations, including the ability to dissolve associations, approve boards of directors, send government representatives to any board meeting, prevent associations from merging their operations, and appoint an auditor to examine an association's finances for any reason. The law requires associations to inform the Ministry of Social Development of board meetings, submit all board decisions for approval, disclose members' names, and obtain security clearances from the Interior Ministry for board members. The law includes penalties, including fines, for violation of the regulations. The Ministry of Social Development is legally empowered to intervene in NGO activities and issue warnings for violation of the law. NGOs that receive a warning are given a two-month probationary period to address violations.

In January the Ministry of Social Development instituted a new system for reviewing foreign fund transfers to local NGOs. Local NGOs feedback was mixed; some reported applications were processed in under 30 days as required by the law, while other NGOs claimed officials reviewing the foreign fund transfers applied arbitrary criteria to delay or reject their fund transfer applications. Some NGOs reported that unexplained, months-long delays in the decision process continued and that there was no formal process to appeal untransparent decisions.

JORDAN

Citizens widely suspected that the government infiltrated civil society organizations, political parties, and human rights organizations and their internal meetings.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, although there were some restrictions. Restrictions on freedom of movement due to public health measures designed to mitigate the COVID-19 pandemic included the suspending of regular commercial passenger flights from March through September, though a limited number of repatriation flights were permitted; and temporary restrictions on travel between governorates were implemented.

In-country Movement: The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers.

There were continued reports of forced refugee relocations to Azraq refugee camp, including many to Azraq's restricted Village 5, as an alternative to deportation for offenses by Syrian refugees. Such offenses included "irregular status" (expired registration documents or working without a work permit); criminal activities; and potential security risks, which were not clearly defined.

As of September, Azraq camp hosted more than 40,000 individuals, including more than 9,000 adults and children in the fenced-off Village 5 area. In 2019, NGOs estimated that the government forcibly relocated more than 3,800 refugees to Azraq camp, including more than 2,300 to Village 5 for security reasons. The vast majority of these refugees were not informed of the reasons for their detention and did not receive legal assistance. Residents of Village 5 had access to basic humanitarian assistance inside the village but had limited access to the broader camp facilities, including the camp hospital, which required a security escort.

JORDAN

Although some refugees were permitted to leave Village 5 each month, the process for Village 5 residents to relocate to the larger camp remained irregular and slow; NGOs reported only 1,269 individuals left Village 5 in 2019, leading to a growing resident population which lacked freedom of movement within and outside of the camp. NGOs reported nearly half of Village 5 residents had been there for more than three years.

Civil documents of Palestinian Refugees from Syria (PRS) and other refugees were held by authorities during their stay in the camp, and residents were required to apply for leave in order to go outside the camp, severely limiting their freedom of movement.

e. Status and Treatment of Internally Displaced Persons

Not applicable.

f. Protection of Refugees

In 2019 the government halted all registrations of new non-Syrian asylum seekers by the UN High Commissioner for Refugees (UNHCR), pending a government review of poorly defined registration procedures. As of September, the halt in registrations affected more than 7,000 individuals, primarily from Sudan, Somalia, Egypt, and Yemen. According to UNHCR, there was no backlog of registration for Syrian refugees, and it was possible for Syrians to register with UNHCR at centers in Amman and Irbid. With the COVID-19 pandemic and temporary closures of the centers, the government decided that it would accept expired documentation in support of refugee and asylum seeker requests for access to services, including health care, until the end of the year.

A number of PRS and other refugees resided in King Abdullah Park (KAP), an unused fenced public space repurposed since 2016 to house PRS, mixed Syrian-PRS families, and some individuals of other nationalities who arrived from Syria. As of August, 578 individuals were held in KAP, of whom 391 were PRS, 145 Syrians, 20 Jordanians, and 22 of other nationalities. Refugees in KAP were exposed to a wide range of vulnerabilities, including but not limited to

JORDAN

overcrowding and a lack of space and privacy while using common facilities such as latrines, drinking water sources, and kitchens.

PRS who lacked legal status in Jordan limited their movements to avoid coming into contact with authorities. In addition, some PRS with legal documentation reported delays of up to four years for renewal of their documentation.

For PRS with Jordanian citizenship, potential revocation of that citizenship remained a concern. The UN Relief Works Agency (UNRWA) was aware of at least 50 cases of citizenship revocation since the beginning of the Syrian conflict in 2011. In most cases, authorities provided no information regarding the reasons for the revocation.

Access to Asylum: The law does not provide for the granting of asylum or refugee status, and the government lacked a formal system of protecting refugees. A 1998 memorandum of understanding between the government and UNHCR, renewed in 2014, contains the definition of a refugee, confirms adherence to the principle of nonrefoulement, and allows recognized refugees a maximum stay of one year, during which period UNHCR must find them a durable solution. The time limit is renewable, and the government generally did not force refugees to return to their country of origin. As of 2014 authorities require all Syrians in the country to register with the Ministry of Interior and obtain a ministry-issued identification card.

The country's border crossings with Syria remained closed to new refugee arrivals. The Jaber-Nassib border crossing with Syria was partially closed in March for COVID-19 prevention. It remained open for commercial traffic only until August, when it closed completely. The Jaber-Nassib crossing reopened for commercial traffic in September. The Rukban border crossing remained closed. The government determined it would not accept additional Syrian refugees after a 2016 suicide attack along the northeast border with Syria, declaring the surrounding area a "closed military zone." The government restricted humanitarian access to the area. The government's 2013 announcement that it would not allow entry of PRS remains in effect.

JORDAN

Employment: Since 2016 the government has issued more than 192,000 work permits to UNHCR-registered Syrian refugees, with 95 percent of these work permits being issued to men. More than 28,000 work permits remained active. Syrian refugees are eligible for work permits in a limited number of sectors and occupations. COVID-19 mitigation measures reduced the number of work permits issued to Syrian refugees from 47,766 in 2019 to 23,258 as of September.

Tens of thousands of refugees continued to work in the informal economy. Very few non-Syrian refugees had access to the formal labor market due to difficulty in obtaining documentation, ineligibility for work permits, and costs involved in seeking work.

The Ministries of Interior and Labor, in coordination with the United Nations, permitted Syrian refugees living in the camps to apply for work permits. The agreement allows camp-based refugees to use their work permits as a 30-day leave pass to work outside the camp. Camp-based refugees receiving work permits must report to the camp at least one day per month.

Some Jordan residents of Palestinian descent, such as those referred to as “Gazans” for short, do not have Jordanian citizenship. To accommodate this population of 158,000 individuals, authorities issued two-year temporary Jordanian passports without national identity numbers to Palestinian refugees originally from Gaza. These functioned as travel documents and provided these refugees with permanent residency in Jordan. Without a national identity number, though, Palestinian refugees from Gaza were unable to access national support programs fully and were excluded from key aspects of health and social service support. Those refugees from Gaza who were not registered with UNRWA also experienced restrictions and hindrances in accessing education, obtaining driving licenses, opening bank accounts, and purchasing property.

Since 2017 the government has gradually introduced Cabinet decisions and associated instructions that have eased some restrictions on “ex-Gazans,” especially those holding an ID and residency card issued by the Ministry of Interior. These new decisions allow the ex-Gazans with IDs to benefit from the “bread cash support” by allowing them to apply for Ministry of Social Development and National Aid Fund support schemes including opening bank

JORDAN

accounts, accessing health and education services--although still with higher fees--establishing and registering businesses, and purchasing and registering vehicles and property in their own names.

Access to Basic Services: The government allowed UNHCR-registered refugees to access public health and education facilities. In 2019 the government reduced the fees for Syrian refugees to the same rate as uninsured Jordanians pay for access to primary and secondary medical care, and exempted them from paying fees for maternity and childhood care. During the year, this service was also extended to non-Syrian refugees.

The government continued to provide free primary and secondary education to Syrian refugee children and to permit all school-age Syrian refugees access to education. As of the end of the 2019-20 academic year, however, an estimated 50,900 Syrians remained out of school due to financial challenges, transportation costs, child labor, early marriage, and administrative challenges. Non-Syrian refugees must pay to attend government schools and face documentary requirements as barriers to entry. Public schools were overcrowded, particularly in the north of the country, and 201 schools operated on a double-shift schedule to accommodate Syrian students. Through September more than 136,000 Syrian refugee students were enrolled for the 2019-20 school year, representing a 59 percent gross enrollment rate for the K-12 school-aged population.

For those not eligible to access formal education because they have been out of school for three or more years, the Ministry of Education developed a catch-up program for students between the ages of nine and 12. Children age 13 and older who were not eligible to enroll in formal education could participate in informal education through drop-out programs implemented by NGO partners, in close coordination with the Ministry of Education. In 2019, 3,200 Syrian students were enrolled in the Ministry of Education's informal education program.

Tens of thousands of refugee children faced barriers to attending public schools, including lack of transportation, lack of documentation, long distances to schools, bullying by fellow students and teachers, or child labor.

JORDAN

Palestinian refugees from Gaza and other non-West Bank areas who entered the country following the 1967 war are not entitled to receive any UNRWA services, including access to public assistance and higher education. Refugees from Gaza who came to Jordan between June 1946 and May 1948 are eligible to receive UNRWA services.

Access to basic civil services--including renewal of identity documents and the registration of marriages, deaths, and births--remained highly complex for PRS. These vulnerabilities put undocumented refugees at additional risk of abuse by third parties such as employers and landlords.

Temporary Protection: The government provided temporary protection to individuals who may not qualify as refugees. The government tolerated the prolonged stay of many Iraqis and other refugees beyond the expiration of the visit permits under which they had entered the country. Iraqi and other non-Syrian refugees accrued fines for overstaying their visit permits. Refugees must pay or settle the fines and penalties prior to receiving an exit visa from Jordan and face a five-year ban from re-entry into Jordan.

g. Stateless Persons

Only fathers can transmit citizenship. Women do not have the legal right to transmit citizenship to their children, which can lead to statelessness. Children of female citizens married to noncitizens receive the nationality of the father. Women may not petition for citizenship for noncitizen husbands, who may apply for citizenship only after fulfilling a requirement that they maintain continuous Jordanian residency for 15 years. Once a husband has obtained citizenship, he may apply to transmit citizenship to his children. Such an application could take years, and the government can deny the application.

A large number of Syrian marriages reportedly took place in Jordan without registration due to refugees' lack of identity documents, which were sometimes lost or destroyed when they fled Syria or confiscated by government authorities when they entered the country. Refugees were sometimes unable to obtain birth certificates for children born in the country if they could not present an official marriage certificate or other nationality documents. The government opened a

JORDAN

legal process for such cases to adjust and obtain registration documents. Refugee households headed by women faced difficulty in certifying nationality of offspring in absence of the father, which increased the risk of statelessness among this population. Civil registry departments and sharia courts in the Za'atri and Azraq camps helped Syrian refugees register births.

Section 3. Freedom to Participate in the Political Process

The law does not provide citizens the ability to choose their executive branch of government. The king appoints and dismisses the prime minister, cabinet, and upper house of parliament; can dissolve parliament; and directs major public policy initiatives. Citizens have the ability to choose the lower house of parliament in generally credible periodic elections based on universal and equal suffrage and conducted by secret ballot. Citizens also elect 97 of the 100 mayors, most members of governorate councils, and all members of municipal and local councils. While the voting process was well run, official obstacles to political party activity and campaigning limited participation. International organizations continued to have concerns about the gerrymandering of electoral districts. The cabinet, based on the prime minister's recommendations, appoints the mayors of Amman, Wadi Musa (Petra), and Aqaba, a special economic zone.

Elections and Political Participation

Recent Elections: The government held parliamentary elections on November 10. Local monitors reported the November 10 election was technically well administered and public health procedures were widely followed.

Special voting hours were held for voters in quarantine for COVID-19 exposure but who had not tested positive for the virus. A Defense Order applied criminal penalties for COVID-19-positive citizens who disregarded public health restrictions and did not remain quarantined. The Ministry of Health provided a list of COVID-19-infected patients to the Independent Election Commission. Poll workers briefly closed several polling centers after voters listed by the Ministry of Health as having COVID-19 presented themselves to vote. The Independent Election Commission reported one COVID-19-positive citizen was referred to

JORDAN

prosecutors for appearing at a polling center. Observers with the NCHR noted some older voters encountered difficulties accessing some polling centers.

In preparation for November's parliamentary election, the Ministry of Parliamentary and Political Affairs set out preliminary measures and activities, including six workshops on youth capacity building and political party participation during March. In September the Independent Election Commission (IEC), an autonomous legal entity that supervised elections and administered polls, investigated approximately 25 cases of "political money" (illicit campaign spending) and referred at least four cases to the Amman public prosecutor. The IEC conducted in-person and virtual sessions with youth, women, organizations for persons with disabilities, and others to promote political participation.

The 2017 governorate and municipal elections marked the first time the IEC administered subnational elections, which had previously been managed by the Ministry of Interior. In addition to the election of mayors and local councils, the election seated new governorate-level councils. Many monitors praised the elections as technically well run, but the nongovernmental elections monitoring body Rased registered more than 500 allegedly illegal incidents.

Political Parties and Political Participation: Political parties have been legal since 1992. The law places supervisory authority of political parties in the Ministry of Political and Parliamentary Affairs. Political parties must have 150 founding members, all of whom must be citizens habitually resident in the country and who cannot be members of non-Jordanian political organizations, judges, or affiliated with the security services. There is no quota for women when founding a new political party. Parties may not be formed on the basis of religion, sect, race, gender, or origin, meaning that the party may not make membership dependent on any of these factors. The law stipulates citizens may not be prosecuted or discriminated against for their political party affiliation. Many politicians believed that the GID would harass them if they attempted to form or join a political party with a policy platform.

In 2019 the cabinet approved a new bylaw increasing the benchmarks parties must meet to receive funding, in an effort to encourage actual political activity. Previously, all political parties meeting certain membership levels received equal

JORDAN

government funding, regardless of whether they participated in elections or conducted any other activities. Some of the benchmarks in the new bylaw include the number of candidates fielded in elections, the percentage of votes won, the number of seats attained, and the number of female and youth candidates who win seats.

The Committee on Political Party Affairs oversees the activities of political parties. The secretary general of the Ministry of Political and Parliamentary Affairs chairs the committee, which includes representatives from the Ministry of Interior, Ministry of Justice, Ministry of Culture, NCHR, and civil society. The law grants the committee the authority to approve or reject applications to establish or dissolve parties. It allows party founders to appeal a rejection to the judiciary within 60 days of the decision. According to the law, approved parties can only be dissolved subject to the party's own bylaws or by a judicial decision for affiliation with a foreign entity, accepting funding from a foreign entity, violating provisions of the law, or violating provisions of the constitution. The law prohibits membership in unlicensed political parties.

There were approximately 49 registered political parties, but many were weak, had vague platforms, and were personality centered. The strongest and most organized political party was the Jordanian Muslim Brotherhood-affiliated Islamic Action Front (IAF). According to the Ministry of Parliamentary and Political Affairs, seven new political parties registered with the ministry since October 2019. At the end of the year, these applications remained pending.

Participation of Women and Members of Minority Groups: No laws limit participation of women or minorities in the political process. The electoral law limits parliamentary representation of certain minorities to designated quota seats. Human rights activists cited cultural bias against women as an impediment to women participating in political life on the same scale as men. There are quotas for women in the lower house of parliament, governorate councils, municipal councils, and local councils. Women elected competitively or appointed through quota systems held a small minority of positions in national and local legislative bodies and executive-branch leadership roles.

JORDAN

In August the Ministry of Parliamentary and Political Affairs conducted a training program for women interested in running for election, in collaboration with the Jordanian National Commission for Women.

In January leaders from government, civil society, and the private sector convened for a conference on women's economic empowerment organized by the Inter-Ministerial Committee for Women's Empowerment in partnership with parliament. Panel speakers emphasized the need for sustainable empowerment programs.

The 32-member cabinet included three female ministers: the Minister for Institutional Performance Development; the Minister of Industry, Trade, and Supply; and the Minister of Energy and Mineral. Of the 376 governate seats, 53 were held by women. At the municipal council level, women won 28 indirectly elected seats and 57 by quota, out of a total of 1,783 seats. At the local council (village and neighborhood) level, women won 231 seats in free competition and received 324 seats through the quota system, out of a total of 1,179 seats. No women won mayorships.

Citizens of Palestinian origin were underrepresented at all levels of government and the military. The law reserves nine seats in the lower house of parliament for Christians and three seats for the Circassian and Chechen ethnic minorities combined, constituting an overrepresentation of these minorities. The law stipulates that Muslims must hold all parliamentary seats not specifically reserved for Christians. There are no reserved seats for the relatively small Druze population, but its members may hold office under their government classification as Muslims. Christians served as cabinet ministers, senators, and ambassadors. There was one Druze cabinet member.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, although the government did not implement the law effectively. Authorities have shown an increased willingness to open public corruption investigations, some of which implicated former cabinet ministers and agency heads, but these investigations

JORDAN

have not resulted in completed trials or convictions as of September. The use of family, business, and other personal connections to advance personal economic interests was widespread.

The Jordan Integrity and Anticorruption Commission (JIACC) is the main body responsible for combating corruption, and the Central Bank's Anti-Money Laundering Unit is responsible for combating money laundering. Despite increased investigations, some local observers questioned the JIACC's effectiveness due to its limited jurisdiction and insufficient staff. The law allows the JIACC to request asset seizures, international travel bans, and suspension of officials under investigation for corruption. The JIACC has administrative and operational autonomy, though the prime minister appoints its leadership board.

Corruption: Government officials and prosecutors launched a number of high-profile corruption investigations during the summer. The former minister of agriculture resigned in the spring due to public corruption charges against his staff for their having sold "movement passes" issued selectively to allow certain individuals to conduct essential business during periods of COVID-19 lockdown. In June the government announced a campaign to combat tax evasion which involved tax authorities opening hundreds of investigations and raiding over a dozen firms. On July 1, a former minister of public works and housing pleaded not guilty to charges of abuse of office; his trial was ongoing as of September. In July and August, prosecutors ordered the temporary detention of a major government contractor related to a member of parliament. The businessman was accused of wasting public funds; his case was in the pretrial stage as of September.

In 2019 the SSC began the trial of 54 defendants accused of illegal production and smuggling of tobacco. In 2018, the government announced it had extradited from Turkey the key suspect in the case, businessman Awni Motee, who fled the country before being arrested in 2018. In 2019, the SSC prosecutor ordered the detention of a former customs department director and former minister of water and irrigation as well as four serving officials linked to the case. The former customs director, the former water minister, and the other four officials were released on bail. Other defendants were refused bail and remain in detention including key suspect Motee. The trial is ongoing.

JORDAN

Financial Disclosure: The law requires certain government officials, their spouses, and dependent children to declare their assets privately to the Ministry of Justice within three months of their assuming a government position. Officials rarely publicly declared their assets. Authorities blocked efforts by transparency activists to identify officials publicly who did not declare their assets. JIACC officials may review disclosure information in the event of a complaint or credible allegation. Under the law, failure to disclose assets may result in a prison sentence from one week to three years or a fine. No officials were punished for failing to submit a disclosure.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A number of domestic and international human rights groups operated in the country with some restrictions. The law gives the government the ability to control NGOs' internal affairs, including acceptance of foreign funding. NGOs generally were able to investigate and report publicly on human rights abuses, although government officials were not always cooperative or responsive. In one case security services intimidated staff of a human rights NGO. A legal aid organization reported that lawyers were harassed for following up on cases and threatened with disbarment by the Jordanian Bar Association.

Government Human Rights Bodies: The NCHR, a quasi-independent institution established by law, received both government and international funding. The prime minister nominates its board of trustees, and the king ratifies their appointment by royal decree. Its board of trustees appoints NCHR's commissioner general. In July a new commissioner was appointed by the prime minister based on a recommendation by the NCHR Board of Trustees. The NCHR compiles an annual report assessing compliance with human rights that sometimes criticizes government practices. The NCHR submits the report to the upper and lower houses of parliament and to the cabinet. NCHR recommendations are not legally binding, but the government coordinator for human rights (GCHR) is required to

JORDAN

respond to the report's recommendations and to measure progress towards international human rights standards.

Ministries' working groups continued to meet and implement their responsibilities under the national human rights action plan, a 10-year comprehensive program launched in 2016 to reform laws in accordance with international standards and best practices, including improving accessibility for persons with disabilities. Developments on the action plan were regularly published on the ministries' websites. Ministries affirmed commitment to the plan but expressed frustration with the limited resources available to implement it.

To implement the action plan, the GCHR maintained a team of liaison officers from government, NGOs, security agencies, and other institutions to improve collaboration and communication. The minister of justice convened a committee consisting of the GCHR, the Legislative and Opinion Bureau's director, NCHR's commissioner, the secretary general of the Jordanian National Commission for Women, and the head of the Press Association to reassess the implementation of the objectives of the national plan for human rights. Through September, 20 percent of the plan's activities were completed, 42 percent remained ongoing, and 38 percent remained pending.

In July the prime minister appointed a new head of the GCHR to replace the previous head, who had resigned in June. The new GCHR head and the Prime Minister's Office human rights unit coordinate government-wide implementation of the national plan, including drafting and responding to human rights reports. The GCHR office conducted 47 activities during the year under the national human rights plan, including discussions of the Universal Periodic Review recommendations, inclusion of persons with disabilities in the public and private sectors, gender, trafficking in persons, and general human rights awareness workshops.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Women

JORDAN

Rape and Domestic Violence: The law stipulates a sentence of at least 10 years' imprisonment with hard labor for the rape of a girl or woman age 15 or older. Spousal rape is not illegal. The law makes prosecution mandatory for felony offenses, including rape. Nonfelony offenses, such as certain cases of domestic violence, are first subjected to mediation by the Family Protection Department (FPD) of the PSD. The law provides options for alternative sentencing in domestic violence cases, with consent of the victim. The government did not effectively enforce the law against rape. Violence against women was prevalent. While the reported number of "honor" crimes decreased, local NGOs reported deaths from domestic violence increased. In August a human rights NGO reported that 15 women died from domestic violence in the year. In September the Euro-Med Monitor reported 21 women murdered in the year, versus seven in 2018.

On August 29, a criminal court prosecutor charged a man with the premeditated murder of his Lebanese wife, whom he killed and set on fire in Madaba.

Women may file complaints of rape or physical abuse with certain NGOs or directly with judicial authorities. However, due to social taboos and degrading treatment at police stations, gender-based crimes often went unreported. The FPD investigated cases but gave preference to mediation, referring almost all cases to the social service office. Some NGOs and lawyers reported pressure against taking physical abuse cases to court. Spousal abuse is technically grounds for divorce, but husbands sometimes claimed cultural authority to strike their wives. Observers noted while judges generally supported a woman's claim of abuse in court, due to societal and familial pressure and fear of violence such as "honor" killings, few women sought legal remedies. In July the PSD announced a restructuring of the FPD in response to ongoing family violence crimes. New directives expanded the FPD's jurisdiction to include misdemeanor offenses of premarital sex and adultery, which were previously handled by other PSD departments. The PSD, the judiciary, and Ministries of Justice, Health, and Social Development were jointly developing a formal mediation process, according to the FPD.

NGO representatives reported fewer women at risk of becoming victims of "honor" crimes but more women at risk of domestic violence. According to international human rights organizations operating in the country, gender-based

JORDAN

violence, particularly domestic violence, increased during the COVID-19 pandemic. Emotional and physical abuse, often perpetrated by an intimate partner or member of the family, were the most common forms of abuse. UN Women reported that 62 percent of women surveyed, particularly those living in households of five or more persons, felt at increased risk of violence as a result of pandemic-related household tensions, including food insecurity.

Governors used the Crime Prevention Law to detain women administratively for their protection. The Ministry of Social Development operated a shelter for women at risk of violence and “honor” crimes. In its second year of operation since opening in 2018, the shelter served 166 women, including administrative detainees from the Juweideh women’s correctional and rehabilitation center, women referred to the shelter by the FPD, and women who were directly referred to the shelter by governors. Children younger than age six were allowed to accompany their mothers, including children reunited with their mothers who had previously been detained under protective custody.

The FPD operated a domestic violence hotline and received inquiries and complaints via email and in person. The Ministry of Social Development maintained a second shelter for female victims of domestic violence in Irbid.

In 2019 the Ministry of Social Development launched a national initiative aimed at preventing and responding to gender-based violence. The ministry also created a manual for providing health care to and treating sexual assault victims. NGOs reported that health-care providers and teachers were still hesitant to report abuse due to the absence of witness protection guarantees. Specialized judges continued expediting and classifying domestic violence cases; misdemeanor cases took approximately three months to resolve, according to legal aid NGOs. A judge must oversee the resolution of each case and confirm consent of both parties, and may order community service or quash criminal charges. Another legal aid NGO assisted the Government of Jordan in developing mediation guidelines.

Other Harmful Traditional Practices: Civil society organizations stated that many “honor” crimes went unreported, especially in nonurban areas.

JORDAN

In July a family murder that was deemed an “honor” crime by NGOs provoked nationwide protests against gender-based violence. On July 17, a woman in her thirties was murdered by her father. Social media users circulated a video with a hashtag that translated to “screams of Ahlam” that showed a woman (identified as the victim) screaming for help in the vicinity of witnesses, before her father allegedly bludgeoned her to death with a brick. The prosecutor’s office charged the father with murder, and he remains in detention. Prosecutors issued a gag order, stopping reporting on further details on the case, including the victim’s full name. On July 22, hundreds of demonstrators held a sit-in in front of parliament to protest violence against women in the wake of the Ahlam case. Protesters called for stricter penalties for domestic violence and crimes against women.

There were no reported instances of forced marriage as an alternative to a potential “honor” killing during the year, although NGOs noted many cases of forced marriage occurred shortly after an accusation of rape, due to family and societal pressure before any formal trial began. Observers noted that, according to customary belief, if a woman marries her rapist, her family members do not need to kill her to “preserve the family’s honor,” despite a 2017 amendment to the law ending the practice of absolving rapists who married their victims. Nevertheless, NGOs noted that this amendment helped reduce such instances and encouraged more women to report rape, especially since the establishment of the shelter.

Governors referred potential victims of “honor” crimes to the Ministry of Social Development shelter instead of involuntary protective custody in a detention facility. During the year governors directly referred 69 women to the shelter.

The law authorizes DNA tests and scientific means to identify paternity of a newborn associated with “rape, deception, and deceit.”

Sexual Harassment: The law strictly prohibits sexual harassment and does not distinguish between sexual assault and sexual harassment. Both carry a minimum prison sentence of four years’ hard labor. The law also sets penalties for indecent touching and verbal harassment but does not define protections against sexual harassment. Sexual harassment of women and girls in public was widely reported. NGOs reported refugees from Syria and foreign workers, particularly garment

JORDAN

workers and domestic workers, were especially vulnerable to gender-based violence, including sexual harassment and sexual assault, in the workplace.

Reproductive Rights: The law permits couples the basic right to decide the number, spacing, and timing of their children. Contraceptives, except emergency contraceptives, were generally accessible and provided free of charge in public clinics. Advocates have raised concerns over barriers to services for unmarried women and access problems for women and girls with disabilities, including consent for hysterectomies. Human rights groups have raised concerns over the treatment of single women who give birth at hospitals, including hospital staff's reporting them to authorities. According to estimates in the UN Population Fund's *State of World Population 2020*, 21 percent of women aged 15-49 years used a modern method of contraception.

The government provided access to sexual and reproductive health services for survivors of sexual violence, but emergency contraception was generally not available, limiting clinical management of rape.

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Coercion in Population Control: There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

JORDAN

Discrimination: The constitution guarantees equal rights to men and women. However, the law does not necessarily provide for the same legal status, rights, and inheritance provisions for women as for men. Women experienced discrimination in a number of areas, including divorce, child custody, citizenship, the workplace, and, in certain circumstances, the value of their testimony in a sharia court handling civil law matters.

No specialized government office or designated official handles discrimination claims. The Jordanian National Commission for Women, a quasi-governmental organization, operated a hotline to receive discrimination complaints.

Under sharia, daughters inherit half the amount that sons receive, with some exceptional cases. A sole female heir receives only half of her parents' estate, with the balance going to uncles, whereas a sole male heir inherits all of his parents' property. Women may seek divorce without the consent of their husbands in limited circumstances such as abandonment, spousal abuse, or in return for waiving financial rights. The law allows retention of financial rights under specific circumstances, such as spousal abuse. Special religious courts for recognized Christian denominations under the Council of Churches adjudicate marriage and divorce for Christians, but for inheritance, sharia applies to all persons, irrespective of religion.

In March the sharia court took COVID-19 response measures in line with the Defense Law. Alimony for women was paid electronically or through the Jordan Post Office. Due to suspension of work and salaries in some cases, the court resorted to the Alimony Credit Fund to pay women and children's alimony.

The law allows fathers to obtain a court order to prevent their children younger than 18 from leaving the country. This procedure is unavailable to mothers. Authorities did not stop fathers from leaving the country with their children when the mother objected, although divorced mothers may seek injunctions on their former spouses to prevent them taking their children abroad.

The government provided men with more generous social security benefits than women. Family members who inherited the pension payments of deceased civil servants received differing amounts according to the heir's gender. Laws and

JORDAN

regulations governing health insurance for civil servants permit women to extend their health insurance coverage to dependents or spouses, even if the woman is not a citizen. Men must be citizens to extend full insurance benefits to spouses and dependents.

In April 2019 parliament amended the law to allow a non-Muslim mother to retain custody of her Muslim children beyond the age of seven (the previous limit).

Children

Birth Registration: Only fathers can transmit citizenship. The government did not issue birth certificates to all children born in the country during the year. The government deemed some children, including children of unmarried women or interfaith marriages involving a Muslim woman and converts from Islam to another religion, illegitimate and denied them standard registration. Instead, the government issued these children, as well as orphans, special national identification numbers that differed from the standard national identification numbers given to most citizens. This made it difficult for these children to attend school, access health services, or receive other documentation. National identification numbers do not change during a person's lifetime and are used in all forms of identification. If children of Jordanian mothers and noncitizen fathers apply and meet certain criteria, they may gain access to certain services enjoyed by citizens, including subsidized health care; the ability to own property, invest, and obtain a driver's license; and employment priority over other foreigners. To access these services, children must obtain a special identification card through the Civil Status Bureau. Under the law, children of Jordanian mothers and noncitizen fathers who apply for social services must reside in the country and prove the maternal relationship. By law the cabinet may approve citizenship for children of Jordanian mothers and foreign fathers under certain conditions, but this mechanism was not widely known, and approval rarely occurred.

Authorities separated children born out of wedlock from their mothers and placed them in orphanages, regardless of the mother's desire for custody. NGOs reported two cases of newborns born out of wedlock who were allowed to reunite with their mothers who were residing at the Ministry of Social Development shelter.

JORDAN

Education: Education is compulsory from ages six through 16 and free until age 18. No legislation exists to enforce the law or to punish guardians for violating it. Children without legal residency face obstacles enrolling in public school. Some children of female citizens and noncitizen fathers must apply for residency permits every year, and authorities did not assure permission (see section 2.g., Stateless Persons). See section 2.f. for information on access to education for refugees.

Child Abuse: No specific law provides protection for children, but other laws specify punishment for child abuse. For example, conviction for rape of a child younger than age 15 potentially carries the death penalty. There were no convictions for rape of a child younger than 15 during the year. Local organizations working with abused children pointed to gaps in the legal system that regularly resulted in lenient sentencing, particularly for family members. In child abuse cases, judges routinely showed leniency in accordance with the wishes of the family. In some cases, authorities failed to intervene when confronted with reports of abuse, resulting in escalating violence and death.

Child, Early, and Forced Marriage: The minimum age for marriage is 18. With the consent of both a judge and a guardian, a child as young as age 16 may be married. Judges have the authority to decide if marriage of girls between age 16 and 18 would be “in their best interest” and to adjudicate the marriage contract. Early and forced marriage among refugee populations remained higher than among the general population. During the year a large number of marriages of Syrians in the country involved an underage bride, according to many sources. According to local and international organizations, some Syrian refugee families initiated early marriages for their daughters to help mitigate the stresses of poverty.

Sexual Exploitation of Children: The law stipulates a penalty for the commercial exploitation of children of six months’ to three years’ imprisonment. The law prohibits the distribution of pornography involving persons younger than age 18. The law does not specifically prohibit the possession of child pornography without an intention to sell or distribute. The law penalizes those who use the internet to post or distribute child pornography. The minimum age of consensual sex is 18, although sexual relations between minors whose marriages the courts approved are legal.

JORDAN

Displaced Children: Given the large refugee population, there were significant numbers of displaced children (see section 2.f.).

Institutionalized Children: Authorities automatically referred cases involving violence against persons with disabilities or institutionalized persons to the FPD. The community monitoring committee highlighted the pervasive use of physical discipline; physical and verbal abuse; unacceptable living conditions; and a lack of educational, rehabilitative, or psychosocial services for wards and inmates.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parent Child Abduction* at <https://travel.state.gov/content/travel/en/International-Parental-Child-Abduction/for-providers/legal-reports-and-data/reported-cases.html>.

Anti-Semitism

Aside from foreigners, there was no resident Jewish community in the country. Anti-Semitism was present in media. Editorial cartoons, articles, and opinion pieces sometimes negatively depicted Jews, without government response. The national school curriculum, including materials on tolerance education, did not mention the Holocaust, but it was taught in some private school curriculums.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Persons with Disabilities

The law generally provides equal rights to persons with disabilities, but authorities did not uphold such legal protections. Disabilities covered under the law include physical, sensory, psychological, and mental disabilities. The Higher Council for Affairs of Persons with Disabilities (HCD), a government body, worked with ministries, the private sector, and NGOs to formulate and implement strategies to assist persons with disabilities. Citizens and NGOs universally reported that persons with disabilities faced problems obtaining employment and accessing

JORDAN

education, health care, information, communications, buildings, transportation, the judicial system, and other services, particularly in rural areas.

The electoral law directs the government to verify that voting facilities are accessible to persons with disabilities and allows such persons to bring a personal assistant to the polling station. In August the HCD signed a Memorandum of Understanding and a joint cooperation protocol with the Independent Election Commission, aimed at expanding the participation of persons with disabilities in the electoral process, and ensuring their right to vote and run for elected office.

In March the HCD criticized the government for the lack of communication for persons with disabilities on the COVID-19 response. HCD issued a statement highlighting the importance of inclusive messaging regarding COVID-19 prevention and healthcare for persons with disabilities. In response to this and calls by other disability advocates, local TV channels added sign-language interpretation to the daily afternoon special COVID-19 news update, including reports by correspondents in the field. Additionally the HCD started posting videos on the Council's Facebook page that added audiovisual aids and sign-language clips to government announcements.

The law tasks the Special Buildings Code Department with enforcing accessibility provisions and oversees retrofitting existing buildings to comply with building codes. The vast majority of private and public office buildings continued to have limited or no access for persons with disabilities. Municipal infrastructure, such as public transport, streets, sidewalks, and intersections, was largely not accessible.

The PSD's national 911 emergency call center provided emergency services for citizens with hearing and speech disabilities by using sign language over a video call with specially trained officers on duty. These PSD interpreters were also available for citizens to use when discussing issues with government offices without a representative who could communicate via sign language.

Children with disabilities experienced extreme difficulty in accessing constitutionally protected early and primary education. The NCHR noted school classrooms were not fully accessible and that there was a limited number of qualified teachers for children with disabilities. The NCHR reported that the

JORDAN

appointment of qualified teachers was restricted by a Defense Order imposing a temporary moratorium on new appointments and the secondment of personnel in ministries, government departments, and public official institutions and bodies. Families of children with disabilities reported further challenges from COVID-19 prevention measures.

Human rights activists and media reported cases of physical and sexual abuse of children and adults with disabilities in institutions, rehabilitation centers, and other care settings. The government operated some of these institutions.

The HCD did not receive any complaints of abuses of persons with disabilities during the year.

Members of National/Racial/Ethnic Minority Groups

Four distinct groups of Palestinians resided in the country, not including the PRS covered in section 2.f., many of whom faced some discrimination. Those Palestinians and their children who migrated to the country and the Jordan-controlled West Bank after the 1948 Arab-Israeli war received full citizenship, as did those who migrated to the country after the 1967 war and held no residency entitlement in the West Bank. Those Palestinians and their children still holding residency in the West Bank after 1967 were not eligible to claim full citizenship, but they could obtain temporary travel documents without national identification numbers, provided they did not also carry a Palestinian Authority travel document. These individuals had access to some government services; they paid 80 percent of the rate of uninsured foreigners at hospitals and noncitizen rates at educational institutions and training centers. Refugees and their children who fled Gaza after 1967 are not entitled to citizenship, and authorities issued them temporary travel documents without national numbers. These persons had no access to government services and were almost completely dependent on UNRWA services.

Palestinians were underrepresented in parliament and senior positions in the government and the military, as well as in admissions to public universities. They had limited access to university scholarships. They were well represented in the private sector.

Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation and Gender Identity

JORDAN

Authorities can arrest LGBTI individuals for violating public order or public decency ordinances. While consensual same-sex sexual conduct among adults is not illegal, societal discrimination against LGBTI persons was prevalent, and LGBTI persons were targets of violence and abuse, including rape, with little legal recourse against perpetrators. Transgender individuals were especially vulnerable to acts of violence and sexual assault. LGBTI persons reported discrimination in housing, employment, education, and access to public services. The law does not prohibit discrimination against LGBTI individuals. LGBTI individuals reported the authorities responded appropriately to reports of crime in some cases. Other LGBTI individuals reported their reluctance to engage the legal system due to fear their sexual orientation or gender identity would either provoke hostile reactions from police, disadvantage them in court, or be used to shame them or their families publicly. LGBTI community leaders reported that most LGBTI individuals were not openly gay and feared disclosure of their sexual orientation or gender identity. The Media Commission banned books containing LGBTI content.

There were reports of individuals who left the country due to fear that their families would kill them because of their gender identity.

HIV and AIDS Social Stigma

HIV and AIDS were largely taboo subjects. Lack of public awareness remained a problem because many citizens believed the disease exclusively affected foreigners and members of the LGBTI community. Society stigmatized individuals with HIV, and those individuals largely concealed their medical status. The government continued its efforts to inform the public about the disease and eliminate negative attitudes about persons with HIV or AIDS, but it also continued to test all foreigners annually for HIV, as well as for hepatitis B, syphilis, malaria, and tuberculosis. The government deported migrant workers who were diagnosed with HIV.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

JORDAN

The law provides for the right to form and join trade unions and conduct legal strikes, but with significant restrictions. There is no right to collective bargaining, although the law provides for collective agreements. The law identifies specific groups of public- and private-sector workers who may organize. It also defines 17 industries and professions in which trade unions may be established. The law requires that these 17 trade unions belong to the government-linked General Federation of Jordanian Trade Unions, the country's sole trade union federation. The establishment of new unions requires at least 50 founding members and approval from the Ministry of Labor. The law authorizes additional professions to form professional associations on a case-by-case basis.

There were no reports of threats of violence against union heads, although labor activists alleged that the security services pressured union leaders to refrain from activism that challenged government interests. Strikes generally occurred without advance notice or registration.

In July authorities suspended The Jordanian Teachers Syndicate (the syndicate) and detained its 13-member governing board. All were released on bail following 30 days in detention. Security forces raided several of the syndicate's offices. Under the suspension, the syndicate is prohibited for two years from conducting any activities or using its headquarters in Amman or its 12 branch offices in the governorates. Authorities stated they had acted against the syndicate because of financial transgressions under investigation by the Anti-Corruption Commission, inflammatory decisions issued by the syndicate's council and circulated on social media, and videos of "incendiary" remarks by acting syndicate head Nasser Nawasreh released on social media. All public school teachers belong to the syndicate, which has approximately 100,000 members. On July 25 and 29, hundreds of teachers and their supporters protested in Amman and other cities (see section 2.b.).

On August 3, the International Trade Union Confederation (ITUC) sent a letter to the government in which it denounced the attacks against the syndicate, emphasizing that the international right to freedom of association is protected by law. ITUC called for the government to immediately release the arrested teachers and syndicate council members, to annul the Attorney General's order to dissolve

JORDAN

the syndicate, and to refrain from further attacks against and harassment of the syndicate and its members. The NCHR reported that some detained teachers signed pledges not to participate in protests or disturb the public order.

When conflicts arise during labor negotiations, the law requires that union representatives and employers first attempt to resolve the issue through informal mediation. If the issue remains unresolved, the union is required to submit a request for a Ministry of Labor-appointed mediation. Labor-appointed mediators are assigned to cases for up to 21 days. If initial mediation fails, the issue is referred to a higher mediation council composed of an employer representative, a labor representative, and a chair appointed by the minister of labor. If the council's adjudication is unsuccessful, this issue is referred to a labor court with a panel of ministry-appointed judges for 21 days.

In March, in response to the COVID-19 pandemic, the government suspended the mandatory legal periods and deadlines regarding labor disputes stipulated in the law. The judiciary resumed operations on June 1.

In December 2019 the General Trade Union of Workers in Textile, Garment and Clothing Industries, along with the Jordan Garments, Accessories & Textiles Exporters' Association and the Association of Owners of Factories, Workshops and Garments signed a three-year collective bargaining agreement (CBA). The agreement added new provisions to its previous versions and adopts internal policies proposed by the Ministry of Labor to eliminate abusive behaviors. The new CBA calls for employers to provide medical care for workers and to adopt zero-tolerance policies against sexual harassment. The Ministry of Labor signed a total of 19 CBAs in the year.

The law allows foreign workers to join unions but does not permit them to form unions or hold union office. Authorities did not permit civil servants to form or join unions or engage in collective bargaining. No new trade union has been established since 1976. The law prohibits antiunion discrimination and protects workers from employer retaliation for union affiliation or activities. The law does not explicitly provide the right to reinstatement for workers fired due to antiunion views.

JORDAN

There are limits on the right to strike, including a requirement to provide a minimum of 14 days' notice to the employer. The law prohibits strikes if a labor dispute is under mediation or arbitration. The law prohibits management from arbitrarily dismissing workers engaged in labor activism or arbitration, but enforcement was inconsistent. Labor organizations reported that some management representatives used threats to intimidate striking workers.

The government did not fully respect freedom of association and the right to collective bargaining. Many worker organizations were not independent of the government, and the government influenced union policies and activities.

The government subsidized and audited salaries and activities of the General Federation of Jordanian Trade Unions and monitored union elections. The government denied recognition to independent unions organized outside the structure of the government-approved federation. The government did not meet with these unions, and the lack of legal recognition hampered their ability to collect dues, obtain meeting space, and otherwise address members' workplace concerns. Labor organizations also reported difficulty getting government recognition for trade unions in new sectors beyond the 17 sectors established in law, in part because new unions would require approval by a tripartite committee in which the existing 17 union heads are represented.

Some foreign workers whose residency permits are tied to work contracts were vulnerable to retaliation by employers for participating in strikes and sit-ins. Participation in a legally unrecognized strike is counted as an unexcused absence under the law. The law allows employers to consider employment contracts void if a worker is absent more than 10 consecutive days, as long as the employer provides written notice. Labor rights organizations reported instances of refusing to renew foreign workers' contracts due to attempts to organize in the workplace.

Observers noted that the labor code did not explicitly protect nonunionized workers from retaliation. This was particularly the case for foreign workers in all sectors as well as citizens working as day laborers in the public sector on short-term contracts.

JORDAN

Labor NGOs working to promote the rights of workers generally focused on promoting the rights of migrant workers. Labor NGOs did not face government restrictions in addition to or apart from those discussed in section 2.b.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor except in an emergency such as war or natural disaster or when prison sentences include hard labor. The government enforced the law, although penalties were not commensurate with those prescribed for analogous crimes in all cases. Labor activists noted that law enforcement and judicial officials did not consistently identify victims or open criminal investigations of forced labor.

The government inspected garment factories, a major employer of foreign labor, and investigated allegations of forced labor. A 2019 study by the Global Alliance against Trafficking in Women found that female Bangladeshi garment workers in the country suffered physical, verbal, and psychological abuse and were provided crowded, bedbug-infested living conditions and unsanitary food. Forced labor or conditions indicative of forced labor also occurred among migrant workers in the domestic work and agricultural sectors. Activists highlighted the vulnerability of agricultural workers due to minimal government oversight. Activists also identified domestic workers, most of whom were foreign workers, as particularly vulnerable to exploitation due to inadequate government oversight, social norms that excused forced labor, and workers' isolation within individual homes. Activists further noted cases where domestic workers who used an employer's phone to complain to a Ministry of Labor hotline sometimes experienced retaliation when the hotline returned the call to their employers. In 2019 the International Organization for Migration reported the Ministry of Labor's Countertrafficking Unit preferred to settle potential cases of domestic servitude through mediation rather than referring them for criminal prosecution. High staff turnover at the unit also reportedly made prosecution more difficult.

Government bylaws require recruitment agencies for migrant domestic workers to provide insurance with medical and workplace accident coverage. The bylaws authorize the Ministry of Labor publicly to classify recruitment agencies based on compliance with the labor law, and to close and withdraw the license of poorly

JORDAN

ranked agencies. As of August the ministry warned 23 recruitment agencies and transferred 11 domestic helper complaints to the PSD's Countertrafficking Unit. A closure recommendation is an internal procedure in which inspectors send to the minister of labor their recommendation to close recruitment agencies with multiple labor violations. Based on that recommendation, the minister may issue a closure decision.

Also see the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits all of the worst forms of child labor. The law forbids employment of children younger than age 16, except as apprentices in light work. The law bans those between the ages of 16 and 18 from working in hazardous occupations, limits working hours for such children to six hours per day, mandates one-hour breaks for every four consecutive working hours, and prohibits work after 8 p.m., on national or religious holidays, and on weekends.

The Ministry of Labor's Child Labor Unit was responsible for coordinating government action regarding child labor in collaboration with the National Committee on Child Labor. The Child Labor Unit, with the ministry's labor inspectors, was responsible for enforcing all aspects of the labor code, including child labor. Authorities referred criminal violations to the magistrate's penalty court which handles labor cases. The law provides that employers who hire a child younger than age 16 pay a fine which was not clearly prescribed. In 2019 the Ministry of Labor's Child Labor Unit increased the number of inspectors by more than 25 percent, and established and began using an electronic child labor monitoring system to coordinate government and civil society efforts to remove children from illegal labor and provide them with services. The government increased the number of families receiving assistance through the National Aid Fund, a program that provides cash transfers to families who re-enroll working children in school. In addition, the government provided shelter, education, and financial services to children engaged in child labor. Children continue to be engaged in the worst forms of child labor, including street work and dangerous tasks in agriculture. Despite government measures, Syrian children still face

JORDAN

barriers to education due to socioeconomic pressures, bullying, and costs associated with transportation and supplies.

Labor inspectors reportedly monitored cases of legally working children between ages 16 and 18 to issue advice and guidance, provide safe work conditions, and cooperate with employers to permit working children to attend school concurrently. The Labor Ministry had a zero-tolerance policy for labor of children younger than age 16 and hazardous work for children younger than 18.

The government took actions to combat child labor but did not fully and effectively enforce child labor laws. The government did not impose penalties that were commensurate with those for analogous crimes. The government had limited capacity to monitor children working in the informal work sector, such as those working in family businesses and the agricultural sector.

The Ministries of Labor, Education, and Social Development collaborated with NGOs seeking to withdraw children from the worst forms of child labor.

Refugee children worked in the informal sector, sold goods in the streets, worked in the agricultural sector, and begged in urban areas. In 2019 NGOs reported that when government inspectors withdrew Syrian refugee children from child labor, inspectors often took the children to the Azraq refugee camp, even when their families lived in distant urban centers or the Za'atari refugee camp, separating families for days, weeks, or months. NGOs report the reception center has since been shut down and they are aware of a very small number of cases of refugee children engaged in child labor still being sent to Azraq camp.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

d. Discrimination with Respect to Employment and Occupation

The law does not prohibit discrimination with respect to employment and occupation on the basis of race, disability, language, political opinion, national origin, citizenship, age, sexual orientation, gender identity, HIV-positive status, other communicable diseases, or social status.

JORDAN

The law requires private companies to hire workers with disabilities, forbids employers from firing employees solely because of a disability, and directs employers to make their workplaces accessible to persons with disabilities. Citizens and NGOs, however, reported that persons with disabilities faced problems obtaining employment. In December 2019 a coalition of 20 NGOs, private- and public-sector organizations, and disabilities advocates issued a position paper on labor law related to persons with disabilities. An NGO held discussions between government stakeholders and the HCD to review the Ministry of Labor's Employment Bylaw. In January a group of disabilities advocates and activists held discussions at the Civil Service Bureau to reassess employment mechanisms for persons with disabilities.

Discrimination in employment and occupation also occurred with respect to gender, national origin, and sexual orientation (see section 6).

The law places restrictions on professions women are allowed to pursue, normally only "socially acceptable" positions such as nursing and teaching. By law the minister of labor issues decisions specifying the industries and economic activities that are prohibited for women, as well as the hours during which they are allowed to work. Women are prohibited from working in quarries and other hazardous environments, and are not allowed to work between 8 p.m. and 6 a.m. except in hotels, theaters, restaurants, airports, offices of tourism, hospitals, clinics, and some transportation industries. Evening work for women is limited to 30 days per year and a maximum of 10 hours per day. These restrictions limit job competition in favor of men. The Civil Service Ordinance of Jordan discriminates on the allocation of benefits such as the family allowance and cost of living allowance, which are higher for men than for women.

In October 2019 the Ministry of Labor increased the number of professions closed to foreign workers from 11 to 28, with the stated purpose of creating job opportunities in the private sector for Jordanian youth. The decision includes not renewing previously granted foreign worker permits for any of these closed professions. Amendments to the labor law passed during the year prohibit discrimination in wages based solely on gender, and include labor law protections for flexible and part-time work contracts.

JORDAN

Union officials reported that sectors predominantly employing women, such as secretarial work, offered wages below the official minimum wage. The law prohibits women from working in technical roles. Many women reported traditional social pressures discouraged them from pursuing professional careers, especially after marriage. According to the Department of Statistics, for the second quarter of the year, economic participation by women was 14.1 percent, and unemployment among women holding a bachelor's degree was 78.2 percent, compared with 26 percent for men. The female unemployment rate was 28.6 percent, compared with a male unemployment rate of 21.5 percent and the overall unemployment rate of 23.1 percent.

According to the Employment Ministry, Egyptians make up the majority of foreign workers in the country. Jordan exports highly skilled and educated workers while hosting unskilled migrants to perform lower-level jobs its citizens avoid. NGOs reported foreign workers, including garment workers and domestic workers, were especially vulnerable to gender-based violence, sexual harassment, and sexual assault in the workplace. Lawyers criticized the law on harassment in the workplace, saying it did nothing to hold perpetrators of harassment accountable and only assisted victims by allowing them to resign.

Some persons with disabilities faced discrimination in employment and access to the workplace despite the law, which requires any workplace over 50 employees to have 4 percent or more of its employees be persons with disabilities. According to the Ministry of Labor, agreements were signed with private sector companies to ensure implementation of the 4-percent requirement and to allow the ministry to conduct inspections. Some migrant workers faced discrimination in wages, housing, and working conditions (see section 7.e.).

The Ministry of Labor implemented a three-year program on “Economic Empowerment and Social Participation of Persons with Disabilities.” Through the program, 13 instructors were certified to train civil society organizations, private sector companies, and the public sector. The ministry continued to implement a sign language program and offer simultaneous interpretation devices across the ministry's departments. The Ministry also allocated 80,000 dinars (\$113,000) from its budget towards the Employment of Persons with Disabilities Department.

JORDAN

e. Acceptable Conditions of Work

The law provides for a national minimum wage, per month, which is above the poverty line.

The law sets a workweek of 48 hours and requires overtime pay for hours worked in excess of that level. Because there was no limit on mutually agreed overtime, the Ministry of Labor reportedly permitted employees in some industries, such as the garment sector, to work as many as 70 to 75 hours per week, and observers reported many foreign workers requested overtime work. NGOs reported some instances of forced overtime. As part of the COVID-19 pandemic response, the government announced policies for remote work, reduced wages, and suspension of operations for private sector companies. The policies included permission for employers to reduce workers' salaries up to 50 percent in cases where employees could not report to work.

Employees are entitled to one day off per week. The law provides for 14 days of paid sick leave and 14 days of paid annual leave per year, which increases to 21 days of paid annual leave after five years of service with the same firm. Workers also received additional national and religious holidays designated by the government. The law permits compulsory overtime under certain circumstances, such as conducting an annual inventory, closing accounts, preparing to sell goods at discounted prices, avoiding loss of goods that would otherwise be exposed to damage, and receiving special deliveries. In such cases actual working hours may not exceed 10 hours per day, the employee must be paid overtime, and the period may not last more than 30 days. Observers reported some violations, mostly delays of salary payment during periods when the country was locked down for public health reasons.

Employers are required to abide by all occupational health and safety standards set by the government. The law requires employers to protect workers from hazards caused by the nature of the job or its tools, provide any necessary protective equipment, train workers on hazards and prevention measures, provide first aid as necessitated by the job, and protect employees from explosions or fires by storing flammable materials appropriately.

JORDAN

The government did not effectively enforce the law. The Ministry of Labor is responsible for enforcement of labor laws and acceptable conditions of work. The number of labor inspectors was sufficient to enforce compliance. Labor inspectors did not regularly investigate reports of labor abuses or other abuses of domestic workers in private homes, and inspectors cannot enter a private residence without the owner's permission except with a court order. Employees may lodge complaints regarding violations of the law directly with the Ministry of Labor or through organizations such as their union or the NCHR. The ministry opened an investigation for each complaint.

In July the ministry temporarily shut down a factory in the Jordan Valley after workers became ill from an accidental insecticide poisoning. In June the Ministry of Labor issued verbal and written warnings to two textile factories in Karak following a notice of concern from foreign investors and complaints from employees of maltreatment and poor working conditions. The ministry placed inspectors at both locations for two weeks.

Labor standards apply to the informal sector, but the Ministry of Labor did not consistently inspect and monitor all workplace violations or apply all the protections of the labor code to domestic and agricultural workers. Authorities were also hampered by barriers to the inspection of homes where domestic workers lived. Labor organizations stated that many freelancing agricultural workers, domestic workers, cooks, and gardeners, most of whom were foreign workers, were not enrolled for social benefits from the Social Security Corporation because only salaried employees were automatically enrolled, and optional enrollment was limited to citizens. Maternity leave is not consistent between the public and private sector. Domestic workers face discrimination by nationality in their wages. Although the law was amended in 2008 to extend certain rights to domestic and agricultural workers, the law required that each group be covered by its own legislation. A regulation on domestic workers enacted in 2009 did not extend collective bargaining rights or the right to form an association. In August bylaws which regulate working conditions for agricultural workers were published for public comment by the Labor Ministry's Legislation and Opinion Bureau.

JORDAN

The government requires garment-exporting manufacturers to participate in the Better Work Jordan program, a global program implemented by the International Labor Organization and the International Finance Corporation to improve labor standards. All 77 of the foreign-exporting factories required by the government to join Better Work Jordan were active members of the program.

Wage, overtime, safety, and other standards often were not upheld. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Penalties were not commensurate with those for similar crimes. Authorities did not effectively protect all employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely than men to encounter labor violations, including wages below the minimum wage and harassment in the workplace.

A local NGO criticized the lack of safety protections for agricultural workers under the labor law, and reported that many migrant worker dormitories were built using combustible materials, putting residents at a greater risk of fire.

In the garment sector, foreign workers were more susceptible than citizens to dangerous or unfair conditions. Better Work Jordan stated that reports of coercion decreased during the year. Indebtedness of foreign garment workers to third parties and involuntary or excessive overtime persisted. While the law sets the minimum wage, according to an international NGO a substantial portion of the standard monthly minimum wage for foreign workers in the garment industry was used to pay employment placement agencies for food, accommodation, and travel for workers from their home countries.

Employers subjected some workers in the agricultural sector, the vast majority of whom are Egyptians, to exploitative conditions. According to a domestic NGO, agricultural workers usually received less than the minimum wage. Some employers in the agricultural sector confiscated passports. Egyptian migrant workers were also vulnerable to exploitation in the construction industry, where employers usually paid migrant workers less than the minimum wage and failed to uphold occupational health and safety standards.

JORDAN

Domestic workers often faced unacceptable working conditions. While domestic workers could file complaints in person with the Ministry of Labor's Domestic Workers Directorate or the PSD, many domestic workers complained there was no follow-up on their cases. The Counter Trafficking Unit at the PSD operates a 24-hour hotline, with operators available in all languages spoken by migrant domestic workers in the country, including Tagalog, Bengali, and Tamil.

Advocates for migrant domestic workers reported that domestic workers who sought government assistance or made allegations against their employers frequently faced counterclaims of criminal behavior from the employers. Employers could file criminal complaints or flight notifications with police stations against domestic workers. Authorities waived immigration overstay fines for workers deported for criminal allegations or expired work permits. Most of the fleeing domestic workers reportedly fled conditions indicative of forced labor or abuse, including unpaid wages and, to a lesser extent, sexual or physical abuse. By law employers are responsible for renewing foreign employees' residency and work permits but often failed to do so for domestic employees. In May the government launched an online platform called "Hemaya" to assist expatriate workers who were facing uncertainties due to the COVID-19 pandemic and wanted to return to their countries. Medium and small factories were especially affected by the pandemic; some could not meet commitments to staff, and some cancelled contracts and closed worker dormitories. The government continued its cooperation with foreign embassies to waive overstay fees for migrant domestic workers who wished to repatriate after a two-year stay in the country, a policy that greatly reduced the number of domestic workers stranded at their embassies' shelters.